

Pushpa Jindal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 September 2014 · WRIT - C No. 45945 of 2014 · **Writ disposed; conversion application to be decided as per Supply Code 2005.**

HEADNOTE

Mandamus to convert a domestic electricity connection to commercial was not decided on merits. On the licensee's statement that the grievance would be redressed, the Court directed the concerned officer to pass appropriate orders on the conversion application within three months if it is in accordance with law and fulfils the terms and conditions of the Electricity Supply Code, 2005. The stay application, which contained an incorrect prayer relating to another case, was not pressed and was rejected.

FACTUAL SUMMARY

Pushpa Jindal filed a writ petition in the Allahabad High Court seeking a mandamus to convert her domestic electric supply connection to a commercial connection, relying on the sanctioned load of the premises. The accompanying stay application contained an incorrect prayer relating to some other case; counsel was permitted not to press it and the stay was rejected. Counsel for the distribution company (respondents 3 and 4) stated that respondent no. 3 would redress the petitioner's grievance by passing an appropriate order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

conversion of domestic connection to commercial

HOLDING

A writ seeking mandamus to convert a domestic electric supply connection to a commercial connection was disposed of without merits adjudication, directing the licensee (respondent no. 3) to pass appropriate orders on the petitioner's application within three months provided it is in accordance with law and fulfils the terms and conditions of the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO CONVERSION OF THE DOMESTIC CONNECTION TO A COMMERCIAL CONNECTION

The Court expressly declined to adjudicate the conversion claim on merits and left it to independent examination by respondent no. 3. ¶ 1